

United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

Appellate No. SYN-CA4-26-CV-4103 · No-Additional-Transcript Certificate

Filed February 9, 2026

Appellant City of Norvale certifies that no additional transcript needs to be ordered for this interlocutory appeal. The district court conducted the relevant preliminary-injunction hearing on January 19, 2026, in District of South Carolina Case No. SYN-DSC-26-CV-0107. That proceeding was reported electronically, transcribed in writing, and filed on January 20 at ECF 16. The certified appellate record includes the complete written transcript.

The January 19 proceeding addressed the Guild's request for interim relief. Counsel presented argument, exhibits were admitted under the parties' stipulation, and the district court took the motion under advisement. The January 23 memorandum and injunction rely on the same evidentiary materials and hearing. The City does not contend that an untranscribed oral ruling supplied a separate basis for the order under review.

The later district motion for a stay was decided on written submissions. The City filed its motion January 26, the Guild opposed January 27, the City replied January 28, and the district court entered its denial without another hearing. No reporter's transcript arises from that sequence. The notice of appeal and district docket likewise identify no trial, evidentiary proceeding, or oral stay argument requiring transcription.

Scope of Certification and Service

This certificate concerns transcript preparation only. It does not narrow the documentary record, waive reliance on an admitted exhibit, or represent that the January 19 transcript resolves a disputed fact. The City may cite the transcript and written filings according to the appellate rules and any briefing order. If the Court identifies an omitted reported proceeding, counsel will respond promptly and will not treat this filing as permission to withhold a required transcript.

The district clerk's February 9 certificate states that the written hearing transcript is transmitted with the record and that routine conferences did not generate another reported proceeding. Counsel reviewed the certified docket through the notice of appeal, the district stay denial, and the record-completion entry. That review revealed no deposition taken before a court reporter for purposes of the appealed hearing and no sealed transcript requiring a separate order.

Counsel for the Guild was consulted regarding transcript status and did not identify an additional proceeding that should be ordered as of February 9. This statement does not bind the Guild to the City's proposed issues or prevent a timely motion to supplement the record if a genuine omission is discovered. It confirms only that the existing January 19 transcript is the full reported proceeding presently necessary for review.

Municipal Appellate Counsel filed this No-Additional-Transcript Certificate electronically on February 9, 2026. The Court's system served appellate counsel for Piedmont Booksellers Guild on the same date. Counsel certifies the foregoing after examining the district docket, the filed transcript, and the district clerk's record certification.